

TENTATIVE RULING:

Evidentiary Rulings:

1. Requests for Judicial Notice: Plaintiffs' request for judicial notice A, B, C, D, E and F are granted.
2. Defendants' objection to Declaration of Dr. Hugh West: Overruled. The declaration speaks to objective signs of abuse, which is relevant to establish duty to report suspected child abuse.
3. Defendant's objection to Declaration of Dr. Stewart: Overruled. The declaration speaks to objective signs of abuse, which is relevant to establish duty to report suspected child abuse.
4. Plaintiff's objection to Declaration of Dr. MacQuarrie: Overruled as to Paragraph 6; Sustained as to paragraphs 7, 8, 9, 10, 11, 12, 13, 14, and 15.
5. Defendants' objections to evidence referenced in Plaintiff's Separate Statement of Undisputed Material Fact: Overruled as to Nos. 9 and 10, 11, 12.
6. Plaintiff's objections to evidence referenced in Defendant's Separate Statement of Undisputed Material Fact and Facts in Dispute: Sustained as to Nos. 1, 2, 3 and 4.

The Court finds the case of *Lugtu v. California Highway Patrol* (2001) 26 Cal.4th 703, 725 controlling on the issue of superseding/supervening cause. Application of the doctrine "depends on whether [one's] conduct was within the scope of the reasons imposing the duty upon the actor to refrain from negligent conduct. If the duty is designed, in part at least, to protect the [victim] from the hazard of being harmed by the intervening force...then that hazard is within the duty, and the intervening force is not a superseding cause." *Lugtu v. California Highway Patrol* (2001) 26 Cal.4th 703, 725. According to *Lugtu*, the superseding cause affirmative defense cannot apply in this case because duty is established by statute.

Defendants fail to raise any disputed material facts on this issue.

Plaintiff's motion for summary judgment is granted as requested on the grounds that Defendant Brady and Defendant Haymond are mandatory child abuse reporters under Penal Code Section 11165.7(a)(21). Defendants, therefore, as a matter of law, owed a duty to Plaintiff to report any reasonable suspicion of child abuse as defined and described in Penal Code Section 11166;

Any failure by Defendants to comply with their mandatory duties under the Child Abuse and Neglect Reporting Act (Penal Code Sections 11164-11174.3) cannot, as a matter of law, be absolved by Defendants asserting or claiming the "superseding cause defense" as defined in various cases, including cases cited by Defendants in affirmative defenses;

Defendant Brady's and Defendant Haymond's Eleventh Affirmative Defense is dismissed.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.